

DPDP Applicable Acts

- ***Applicable Sections (DPDP, 2023)**:**

1. Section 3 - Definitions: Specifically, the definitions of "personal data", "data principal", "data fiduciary", and "processing" are relevant.
2. Section 10 - Obligations of Data Fiduciaries: This section outlines the responsibilities of data fiduciaries, including obtaining consent from data principals, providing notice, and ensuring data accuracy.
3. Section 11 - Processing of Personal Data: This section details the lawful grounds for processing personal data, including consent, legitimate use, and public interest.
4. Section 15 - Rights of Data Principals: This section enumerates the rights of data principals, including the right to access, correct, and erase their personal data.
5. Section 16 - Data Protection Impact Assessment: This section requires data fiduciaries to conduct assessments to identify and mitigate risks to personal data.

- ***Interpretation and Legal Analysis**:**

The Digital Personal Data Protection (DPDP) Act, 2023 aims to regulate the processing of personal data in India. In the scenario where a company is selling your data to a third party, the following analysis applies:

- The company, as a data fiduciary, has obligations under Section 10 to ensure that your personal data is processed lawfully and transparently.
- The sale of personal data to a third party constitutes "processing" under Section 3, which requires the company to obtain your consent (Section 11).
- As a data principal, you have the right to access, correct, and erase your personal data under Section 15. If you have not provided consent for the sale of your data, the company may be liable for a breach of your rights.
- The company may also be required to conduct a Data Protection Impact Assessment (DPIA) under Section 16 to identify and mitigate risks associated with the sale of personal data.

- ***Pros**:**

- Rights of data principals: The DPDP Act, 2023 provides data principals with control over their personal data, including the right to access, correct, and erase their data.

- **Protections:** The Act imposes obligations on data fiduciaries to ensure the secure processing of personal data and provides remedies for breaches.

- ***Cons**:**

- **Liabilities:** Data fiduciaries, including the company selling your data, may face penalties and fines for non-compliance with the Act, including breaches of consent and data protection obligations.

- **Compliance burdens:** Data fiduciaries must implement robust data protection policies and procedures, conduct DPIAs, and maintain records of processing activities.

- ***Procedural Notes**:**

- **Complaints:** Data principals can file complaints with the Data Protection Board (DPB) established under the Act for breaches of their rights.

- **Grievance redressal:** The DPB will investigate complaints and may impose penalties on non-compliant data fiduciaries.

- **Penalties:** The DPB can impose fines of up to **₹250 crore** for serious breaches of the Act.

- **Compliance audits:** The DPB will conduct audits to ensure data fiduciaries are complying with the Act's requirements.

In conclusion, the company selling your data to a third party must comply with Sections 10, 11, and 15 of the DPDP Act, 2023. As a data principal, you have the right to access, correct, and erase your personal data and may file a complaint with the DPB if your rights are breached.